

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Missale	Team: Team # 3	CCRB Case #: 200706401	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 05/06/2007 11:30 AM	Location of Incident: § 87(2)(b) [REDACTED]		18 Mo. SOL 11/6/2008		Precinct: 32
Date/Time CV Reported Sun, 05/06/2007 11:41 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Sun, 05/06/2007 11:41 AM		
Complainant/Victim	Type	Home Address			
[REDACTED]	[REDACTED]	[REDACTED]			
Witness(es)	Home Address				
[REDACTED]	[REDACTED]				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Jaysen Basnight	29694	936178	032 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Jaysen Basnight	Discourtesy: PO Jaysen Basnight spoke obscenely to § 87(2)(b) [REDACTED]			A . Substantiated	
B . POM Jaysen Basnight	Abuse: PO Jaysen Basnight threatened to arrest § 87(2)(b) [REDACTED]			B . Exonerated	

Synopsis

The CCRB received this complaint on May 6, 2007, from § 87(2)(b) via telephone. On May 6, 2007, at approximately 11:30am, § 87(2)(b) was driving northbound on § 87(2)(b) in Manhattan. When § 87(2)(b) attempted to turn on § 87(2)(b), PO Jaysen Basnight informed § 87(2)(b) that he could not make a right turn at that time and hit the back panel of § 87(2)(b)'s vehicle. § 87(2)(b) exited his vehicle and began to argue with PO Basnight. § 87(2)(b) alleged that PO Basnight stated, "Don't you have any fucking common sense?" (Allegation A). PO Basnight informed § 87(2)(b) that he had to move his vehicle immediately or else he would be subject to arrest or summons (Allegation B). § 87(2)(b) drove to the next street, parked the vehicle and approached PO Basnight on foot. § 87(2)(b) argued with PO Basnight and retrieved his name and shield number. § 87(2)(b) walked back to § 87(2)(b)'s vehicle and drove away.

Upon his official CCRB interview, § 87(2)(b) refused mediation and requested that his complaint be investigated. § 87(2)(g) it is recommended that allegation A be closed as substantiated. § 87(2)(g), it is recommended that allegation B be closed as exonerated.

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) black male, provided a statement to the CCRB on May 6, 2007 (Enc. 3a-b). § 87(2)(b) provided and official statement to the CCRB on May 21, 2007 (Enc. 4a-c). § 87(2)(g).

At approximately 11:30am on May 6, 2007, § 87(2)(b) was driving northbound on § 87(2)(b) in Manhattan. He was driving a vehicle belonging to § 87(2)(b) § 87(2)(b) who was sitting in the front passenger's seat. Once they reached § 87(2)(b) and § 87(2)(b) § 87(2)(b) attempted to make a right turn. On that day there was a bicycle marathon routed westbound on § 87(2)(b) preventing drivers from making right turns. PO Jaysen Basnight, who was identified by § 87(2)(b) through his badge number, was standing in the intersection preventing drivers from turning right. When PO Basnight saw a vehicle making a right turn he told § 87(2)(b) to proceed northbound. § 87(2)(b) believed that the right turn was legal. PO Basnight proceeded to hit the back of § 87(2)(b)'s vehicle. § 87(2)(b) stopped the vehicle in front of PO Basnight. PO Basnight threatened to arrest § 87(2)(b) if he did not move his vehicle immediately. PO Basnight used profanity in his initial interaction with § 87(2)(b). Upon further questioning, § 87(2)(b) could not recall the exact words used by PO Basnight. § 87(2)(b) straightened the vehicle and continued northbound on § 87(2)(b). § 87(2)(b) parked the vehicle in front of the § 87(2)(b). § 87(2)(b) exited the vehicle and approached PO Basnight. After arguing with PO Basnight, § 87(2)(b) wrote his name and badge number on a piece of paper. § 87(2)(b) was not arrested nor did he receive summonses.

Results of Investigation

Civilian Statements

§ 87(2)(b) § 87(2)(b) § 87(2)(b) a § 87(2)(b) white female with brown hair and blue eyes, provided an official statement to the CCRB in person on May 21, 2007 (Enc. 5a-c). § 87(2)(g)

§ 87(2)(b) was sitting in the passenger seat of the vehicle being driven by § 87(2)(b). Upon reaching § 87(2)(b) and § 87(2)(b) § 87(2)(b) attempted to make a right turn. PO Jaysen Basnight ran to the passenger side window of the vehicle and shouted, "Don't you have any fucking common sense?" PO Basnight hit the trunk of § 87(2)(b)'s vehicle and instructed him to move immediately. § 87(2)(b) did not allege that PO Basnight threatened to arrest § 87(2)(b).

Officer Identification

§ 87(2)(b) identified PO Basnight through his name and shield number. § 87(2)(b) initially identified the officer as PO Baskin, badge # 29694, but a CTS search indicated that the badge number he provided belongs to PO Basnight. Furthermore, PO Basnight confirmed his involvement in the incident upon his official CCRB statement.

PO Jaysen Basnight

PO Jaysen Basnight's **Memo Book** does not mention the altercation with § 87(2)(b) but confirms that he was assigned to Traffic Detail on § 87(2)(b) and § 87(2)(b) (Enc. 7a-b).

PO Basnight's CCRB Statement

PO Basnight, a § 87(2)(b) old black male with brown hair and brown eyes, provided a statement to the CCRB on July 5, 2007(Enc. 8a-b).

On May 6, 2007 PO Basnight worked a tour from 7:05am to 3:40pm, was assigned to traffic detail and was in uniform. PO Basnight was on foot preventing vehicles from turning right from § 87(2)(b) onto § 87(2)(b). At approximately 11:30am, PO Basnight noticed a vehicle attempting to make a right turn. PO Basnight asked the driver, § 87(2)(b) to stop. It appeared as though the vehicle was going to hit PO Basnight. PO Basnight shouted at § 87(2)(b) to stop the vehicle. § 87(2)(b) continued to inch forward. PO Basnight tapped the back of the vehicle to warn the driver that he was about to hit an officer. PO Basnight stated that if he had not tapped the vehicle, he would have been struck by it. Upon further questioning, PO Basnight stated that he was almost hit by the side of the vehicle. § 87(2)(b) stopped the vehicle, exited and approached PO Basnight. PO Basnight engaged in a verbal argument with § 87(2)(b). § 87(2)(b) was standing only inches away from PO Basnight throughout the altercation. PO Basnight stated that he used profanity during the argument. Upon further questioning, PO Basnight stated that his use of profanity remained at the same level as § 87(2)(b)s. PO Basnight could not remember the exact words that he used. When asked if he stated, "Don't you have any fucking common sense," PO Basnight said that he did not recall. PO Basnight informed § 87(2)(b) that if he did not move his vehicle he would be subject to arrest or summons. § 87(2)(b) drove the vehicle to the next block in front of § 87(2)(b) and parked. § 87(2)(b) exited the vehicle and approached PO Basnight with a pencil and paper. PO Basnight and § 87(2)(b) had a second verbal argument. PO Basnight could not recall the details of the second altercation. § 87(2)(b) asked PO Basnight for his shield number and name. PO Basnight verbally articulated his name and shield number. § 87(2)(b) walked back to § 87(2)(b)s vehicle and continued driving northbound on § 87(2)(b).

Police Documentation

The 32nd Precinct Roll Call for the second tour on May 6, 2007 indicates that PO Basnight was on duty and was assigned to a foot post (Enc. 9a).

§ 87(2)(b)s CCRB History

§ 87(2)(b) has one prior CCRB complaint, § 87(2)(b) (Enc. 2a).

PO Basnight's CCRB History

PO Basnight has no prior substantiated allegations and has been a member of the service for two years (Enc. 1a).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Undisputed Facts

It is not disputed that the right turn that § 87(2)(b) was attempting to make was illegal. It is also not disputed that § 87(2)(b) stopped § 87(2)(b)s vehicle in the intersection. It is undisputed that PO Basnight made contact with the rear of § 87(2)(b)s vehicle. It remains undisputed that PO Basnight used profanity. It is also undisputed that PO Basnight threatened to arrest § 87(2)(b).

Disputed Facts

§ 87(2)(g)

Credibility

§ 87(2)(g)

§ 87(2)(g)

Allegation A: PO Jaysen Basnight spoke obscenely to § 87(2)(b)

§ 87(2)(b) alleged that PO Basnight said to her, “Don’t you have any fucking common sense.” § 87(2)(b) alleged that PO Basnight used profanity. PO Basnight stated that he did use profanity in his altercation with § 87(2)(b) § 87(2)(g)

Patrol Guide Procedure 203-10 clearly prohibits the use of discourteous remarks. In the past there have been exceptions made in instances when the discourteous remark is aimed at protecting the safety of individuals at the scene. In *NYPD v. White* OATH Index No. 78667/03 (Oct 2004) it was deemed appropriate for an officer to use profanity as a means of elevating the urgency of a command when the safety of others is in jeopardy.

§ 87(2)(g)

§ 87(2)(b) gratuitous profanity, which, according to *Police Department v. Leclerc*, OATH Index No. 1409/00 (May 22, 2000), “has consistently been held subject to discipline.” § 87(2)(g)

It is therefore recommended that allegation A be closed as substantiated.

Allegation B: PO Jaysen Basnight threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that PO Basnight threatened to arrest him. PO Basnight confirmed that he threatened § 87(2)(b) with an arrest or summons for traffic violations and failing to comply with a direct order. PO Basnight made this threat while § 87(2)(b)s vehicle was in the middle of an intersection delaying an entire bicycle tour. § 87(2)(g)

It is therefore recommended that allegation B be closed as exonerated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: